Public Competition Assessment

28 October 2025

Qube Holdings Limited (Qube) - proposed acquisition of Melbourne International RoRo & Auto Terminal Pty Ltd (MIRRAT)

The ACCC's decision

1. On 10 April 2025, the ACCC announced its decision not to oppose the proposed acquisition by Australian Amalgamated Terminals Pty Ltd (**AAT**) (the **Acquirer)**, of the business and assets of Melbourne International RoRo & Auto Terminal Pty Ltd (**MIRRAT**) (**Target**) (the **Proposed Acquisition**) after accepting an undertaking (the **Undertaking**) under section 87B of the *Competition and Consumer Act 2010* (the **Act**).

2. The ACCC considered that the Proposed Acquisition, without the Undertaking, would be likely to have the effect of substantially lessening competition in contravention of section 50 of the Act. Section 50 prohibits acquisitions that would have the effect, or be likely to have the effect, of substantially lessening competition in any market. The ACCC considered that the Undertaking sufficiently addressed the ACCC's competition concerns such that the Proposed Acquisition is not likely to contravene section 50 of the Act.

3. AAT operates automotive cargo terminals at the Port of Brisbane (QLD) and at Port Kembla (NSW), as well as a general cargo terminal at Appleton Dock at the Port of Melbourne (Victoria). AAT is a wholly owned subsidiary of Qube Holdings Limited (**Qube**).

4. Qube is Australia's largest, vertically integrated provider of import and export logistics services and is vertically integrated into downstream services for the import of automotive cargo. In particular, Qube has the following relevant interests in the provision of automotive stevedoring and vehicle pre-delivery inspection services:

   - Qube Ports (a wholly owned subsidiary of Qube and related entity of AAT) supplies automotive stevedoring services at the Port of Melbourne, and at other major capital city and regional ports.

- Qube has a 50 per cent shareholding in K Line Auto Logistics, which owns and operates Prixcar Services Pty Limited which provides pre-delivery inspection services for motor vehicles including at major Australian mainland ports.

5. The ACCC considered the competitive effects of the Proposed Acquisition on the:

   - supply of automotive terminal services;
   - supply of automotive stevedoring services;
   - supply of vehicle Pre-Delivery Inspection (PDI) services; and
   - supply of general cargo terminal services,

   at Webb Dock West where MIRRAT is located, and across Australia's eastern seaboard ports.

6. The ACCC was of the view that, in the absence of the Undertaking, AAT would likely have the ability and incentive to wholly or partially foreclose rival stevedores and PDI providers at Webb Dock West, thereby having the likely effect of substantially lessening competition in the supply of these downstream services.

7. The ACCC was also concerned that, absent the Undertaking, a substantial lessening of competition would likely result from Qube engaging in concurrent foreclosure conduct at Webb Dock West as well as at Port Kembla and/or Port of Brisbane. Following the Proposed Acquisition, and absent the Undertaking, the ACCC was concerned that Qube would have the ability and incentive to foreclose its rivals in downstream markets for the supply of automotive stevedoring and/or PDI services concurrently at multiple east coast ports.

8. The ACCC accepted the Undertaking proffered by AAT to address its competition concerns. The Undertaking does this by:

   - establishing a non-discriminatory open access regime for all users of the Terminals, to govern the management and operation of the terminals for the full duration of the Undertaking;
   - establishing a framework to ensure that any Charge implemented by AAT and MIRRAT is reasonable and appropriate having regard to the principles set out in the Undertaking, including to assess whether any new tariff is a Charge under the Undertaking;
   - ensuring the Undertaking obligations are ongoing, fit for purpose and achieve an effective, improved non-discriminatory open access framework for the full duration of the Undertaking, by including in the Undertaking a review mechanism to ensure the Undertaking obligations can be reviewed and amended where any changes in circumstances occur that may impact the effectiveness of those obligations; and
   - ensuring that there are effective mechanisms for the ongoing monitoring, compliance, and enforcement of compliance issues with the Undertaking.

9. This Public Competition Assessment outlines reasons for the decision by the ACCC not to oppose the Proposed Acquisition, after accepting the Undertaking.

10. Please note that this and other public competition assessments are subject to the following qualifications:

    - The ACCC considers each transaction on a case-by-case basis and so the analysis and decision outlined in one assessment will not necessarily reflect the ACCC's view of another transaction.
    - As these assessments are relatively brief and do not refer to confidential information, assessments do not necessarily set out all of the issues and information considered by the ACCC.

The parties and the transaction

The acquirer: AAT

11. AAT, a wholly owned subsidiary of Qube, operates automotive cargo terminals at Port of Brisbane and Port Kembla, as well as a general cargo terminal at Appleton Dock in Port of Melbourne. Qube previously held the lease at Webb Dock West and operated the former roll-on/roll-off (**RoRo**) terminal at the site until its lease expired on 31 December 2017.

12. Qube is Australia's largest, vertically integrated provider of import and export logistics services with national operations that provide a broad range of services across multiple aspects of import-export supply chains. Its port-related activities include facilities management, stevedoring, processing, and delivery. It manages and develops strategic properties such as inland rail terminals and related logistics facilities. It provides road and rail transport of freight to and from ports, operation of container parks, customs and quarantine services, warehousing, intermodal terminals, and international freight forwarding.

13. In addition to being a terminal operator, Qube provides general stevedoring and automotive stevedoring at each of its eastern seaboard ports, through its related entity 'Qube Ports'. Qube also has a 50% interest in K Line Auto Logistics which owns and operates PrixCar Services (**PrixCar**), a provider of PDI services at each of the three automotive terminals on the Eastern Seaboard.

The target: MIRRAT

14. MIRRAT operates the automotive terminal at Webb Dock West. It does not conduct any other terminal operations in Australia. Webb Dock West is the only dedicated automotive terminal at the Port of Melbourne and in Victoria.

15. MIRRAT's ultimate parent company is Wallenius Wilhelmsen ASA (**Wallenius Wilhelmsen**). Wallenius Wilhelmsen is a Norway-based global provider of RoRo shipping and vehicle logistics and operates automotive terminals in Europe, the UK, the US, and the Asia-Pacific.

The transaction

16. AAT proposes to acquire the business and assets of MIRRAT, which operates the automotive terminal at Webb Dock West (Port of Melbourne).

Previous Undertakings

MIRRAT Undertaking

17. Under Wallenius Wilhelmsen's ownership, MIRRAT operated Webb Dock West subject to a section 87B undertaking accepted by the ACCC on 27 March 2014 (**MIRRAT Undertaking**). The MIRRAT Undertaking was designed to prevent MIRRAT from using its position as a vertically integrated operator of the sole dedicated automotive terminal at the Port of Melbourne to discriminate against Wallenius Wilhelmsen's rival automotive shipping lines and other terminal users that MIRRAT may seek to compete with in the future.

18. The ACCC accepted the MIRRAT Undertaking on 27 March 2014 in relation to MIRRAT's acquisition of a long-term lease to operate the automotive terminal at Webb Dock West at the Port of Melbourne. The MIRRAT Undertaking commenced on 1 January 2018.[1] The MIRRAT Undertaking expires on the date that MIRRAT ceases to operate Webb Dock West. The cessation of obligations under the MIRRAT Undertaking is subject to the ACCC's written confirmation.[2]

AAT Undertaking

19. The ACCC accepted the AAT Undertaking on 24 November 2016 in relation to Qube's acquisition of the 50 per cent interest in AAT that it did not already own. Prior to Qube's acquisition of that interest in AAT, AAT was a 50/50 joint venture between Qube and a Brookfield-led Consortium. The AAT Undertaking has no expiry date, subject to the ACCC's revocation of, or consent to the withdrawal of the AAT Undertaking.[3] The AAT Undertaking applies to AAT's operations at the automotive terminals at Port Kembla in NSW and Port of Brisbane in QLD, as well as the general cargo terminal at Appleton Dock at the Port of Melbourne in Victoria.

20. The AAT Undertaking was designed to prevent AAT and Qube from using their position as the vertically integrated operator of the automotive terminal at Port of Brisbane and Port Kembla to discriminate against rivals to Qube's stevedoring and PDI businesses.

21. The full text of the previous AAT Undertaking is available on the ACCC's section 87B undertakings register.

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1 Although the MIRRAT Undertaking was given and accepted in 2014, the MIRRAT Undertaking did not commence until 1 January 2018, which is the date that MIRRAT commenced operations at Webb Dock West.

2 The ACCC consented to the withdrawal of the MIRRAT Undertaking on 24 June 2025 pursuant to section 87B(2) of the Act.

3 The ACCC consented to the withdrawal of the AAT Undertaking on 24 June 2025, pursuant to section 87B(2) of the Act.

Market inquiries

22. The ACCC conducted market inquiries with a range of industry participants, including rival stevedores, rival PDI operators, shipping lines, original equipment manufacturers (OEMs), industry representatives and other interested parties. Submissions and data were sought in relation to the potential competition issues arising from the Proposed Acquisition. The ACCC conducted public consultation on a draft undertaking.

Statement of Issues

23. On 24 October 2024, the ACCC published a Statement of Issues on the Proposed Acquisition identifying a number of competition issues. In the Statement of Issues, the ACCC identified the following competition concerns:

    - **Foreclosure at Webb Dock West**: a vertically integrated Qube was likely to have the ability and incentive to foreclose its rivals in downstream markets for the supply of automotive stevedoring and/or PDI services at Webb Dock West. Qube could do this by raising prices, lowering the quality of terminal services, and/or restricting access to the terminal and/or to related services provided by the terminal to Qube's downstream rivals or customers of those PDI providers or stevedores that use the terminal.
    - **Concurrent foreclosure**: Qube would have the ability and incentive to engage in such foreclosure conduct concurrently at Webb Dock West, Port Kembla and/or Port of Brisbane.
    - **Use of commercially sensitive information**: the Proposed Acquisition could give Qube access to the commercially sensitive information of downstream rivals which could undermine rivals' ability or incentive to compete aggressively or could facilitate coordination.
    - **Tying or bundling conduct**: Qube may have the ability and incentive to tie or bundle terminal services to or with its downstream services or offer its terminal services in a preferred manner if acquired in conjunction with its downstream services, with the effect of raising rivals' costs or otherwise hindering downstream rivals' ability to compete and constrain Qube's downstream activities.

24. The ACCC's Statement of Issues also sought views from market participants on an earlier version of a section 87B undertaking, submitted by Qube at the time of its application to the ACCC.

Industry background

25. As noted above, on 24 October 2024, the ACCC published a Statement of Issues (**SOI**)[4] which included information (paragraphs 42 – 50) about the automotive stevedoring industry in Australia, including:

    - automotive trade at Webb Dock West;

[4] See AAT (Qube) MIRRAT – Statement of Issues.

- the broader automotive cargo supply chain through the Port of Melbourne; and
- general cargo trade at Appleton Dock.

26. The background section is not repeated in this Public Competition Assessment.

Market definition

27. The ACCC considered that the product/service markets relevant for assessing competition effects of the Proposed Acquisition were:
    - the supply of automotive terminal services
    - the supply of automotive stevedoring services
    - the supply of PDI services
    - the supply of general cargo terminal services.

28. The ACCC considered that the relevant geographic dimension of the market for automotive terminal services is the Port of Melbourne. The ACCC considered that the Port of Melbourne does not typically compete with automotive terminals at other Ports for automotive cargo throughput.

29. The ACCC did not form a concluded view on the relevant geographic dimension of the market(s) for automotive stevedoring or PDI services.

30. For general cargo terminal services, the ACCC considered that there is a state-wide market in Victoria. This is consistent with market feedback in which other Victorian ports (e.g. Port of Geelong, Port of Portland) are generally regarded as substitutes for general cargo terminal services.

Competition analysis

31. The below reflects the ACCC's competition analysis in the absence of the Undertaking.

Vertical foreclosure risks in automotive stevedoring and/or PDI services at Webb Dock West

32. Post-acquisition, MIRRAT would continue operating the Webb Dock West terminal under AAT ownership and control. The Proposed Acquisition means that Qube becomes vertically integrated at Webb Dock West through its interests in downstream automotive stevedoring (Qube Ports) and PDI services (Prixcar).

33. The ACCC considered that AAT, as the terminal operator with control over price and non-price terms of access to the terminal and terminal services, would likely have the ability and incentive to foreclose Qube's downstream rivals in markets for the supply of automotive stevedoring and/or PDI services. This could be done by raising the prices or by lowering the quality of terminal services provided to Qube's downstream rivals, or by restricting access to the terminal and/or to other services provided by the terminal. For instance, AAT could:

- increase or introduce terminal charges payable by a rival stevedore and/or increase or introduce charges for services that might be procured by a rival PDI operator such as storage where there is no effective competitive substitute available; and
- restrict or lower the quality of downstream rivals' access to Webb Dock West and to other services provided by Qube at the terminal including in relation to:
  - allocation of berth priority and berth location
  - allocation of vehicle booking slots/truck access
  - allocation of equipment, storage and/or yard space.

34. The resulting reduced competitive constraint on Qube provided by its downstream rivals would likely allow Qube to profitably raise the price or reduce the quality of its own downstream services. In these circumstances, the ACCC concluded that the Proposed Acquisition would be likely to have the effect of substantially lessening competition in the supply of automotive stevedoring and/or PDI services at Webb Dock West.

35. In addition, the ACCC considered that a vertically integrated Qube may have the ability and incentive to tie or bundle terminal services to or with its downstream automotive stevedoring or PDI services or offer terminal services in a preferred manner if acquired in conjunction with its downstream services, leading to a substantial lessening of competition in the supply of automotive stevedoring and/or PDI services. This conduct may be another means to foreclose Qube's downstream rivals, as set out in paragraphs 32 to 34 above.

Concurrent foreclosure risks in automotive stevedoring and/or PDI services across multiple east coast ports

36. Given the Proposed Acquisition of MIRRAT would result in AAT controlling and directing all major automotive terminals along the east coast of Australia, the ACCC was also concerned that Qube and/or AAT would have the ability and incentive to engage in foreclosure conduct at its Webb Dock West terminal concurrently with one or more of its other east coast terminals. The ACCC was concerned that the concurrent or cumulative result of such conduct would have the effect, or be likely to have the effect, of substantially lessening competition in the supply of downstream automotive stevedoring services and/or PDI services at multiple ports.

Qube's access to, and use of, commercially sensitive information of downstream rivals

37. The ACCC considered that Qube could have the ability and incentive to access and use commercially sensitive information supplied to AAT by its rival automotive stevedores or PDI service providers (such as prices or volumes). The ACCC was concerned that this information could be used by Qube to pre-empt or

quickly undercut competitors' pro-competitive offerings and so could discourage them from fully pursuing competitive opportunities.

38. Access to competitors' commercially sensitive information may also facilitate coordination between Qube's downstream businesses and downstream competitors by increasing the visibility of competitors' actions and responses to Qube's downstream conduct.

The Undertaking

39. To address the ACCC's competition concerns, Qube, AAT and MIRRAT offered the Undertaking pursuant to section 87B of the Act. This undertaking is intended to replace the MIRRAT Undertaking and AAT Undertaking and applies to AAT in relation to its operations at Port Kembla, the Port of Brisbane and Appleton Dock terminals, as well as to MIRRAT's operations at Webb Dock West. The Undertaking is perpetual.

40. The Undertaking applies to automotive and RoRo cargo, general cargo and break bulk cargo (including steel, machinery and project cargo). The Undertaking does not apply in respect of bulk or containerised cargo.

41. The ACCC considers that the Undertaking addresses its competition concerns with the Proposed Acquisition because it:

    - requires AAT and MIRRAT to comply with a non-discriminatory open access regime for all users of the AAT and MIRRAT terminals which governs the management and operation of the terminals for the full duration of the Undertaking;
    - establishes a framework to ensure that any Charge implemented by AAT and MIRRAT is reasonable and appropriate having regard to the principles set out in the Undertaking, including to assess whether any new tariff is a Charge under the Undertaking;
    - ensures the Undertaking obligations are ongoing, fit for purpose and achieve an effective, improved non-discriminatory open access framework for the full duration of the Undertaking, by including in the Undertaking a review mechanism to ensure its obligations can be reviewed and amended where any changes in circumstances occur that may impact the effectiveness of those obligations; and
    - ensures that there are mechanisms for the ongoing monitoring, compliance, and enforcement of compliance issues with the Undertaking.

42. In particular, the Undertaking establishes a non-discriminatory, open access framework to govern the management and operation of the AAT and MIRRAT terminals, which requires AAT and MIRRAT not to discriminate between users of the AAT and MIRRAT terminals (including in favour of a Qube related entity), and requires AAT, MIRRAT and Qube not to engage in conduct that prevents or hinders access to terminals by any users (including prospective users).

43. To ensure AAT and MIRRAT do not discriminate in this way, the Undertaking provides that:

- AAT and MIRRAT must:
  - comply with the Open Access Conditions (as outlined in clause 5 of the Undertaking); and
  - comply with the Berthing Allocation Rules (to the extent AAT and MIRRAT have responsibility for berthing at each Terminal as outlined in clause 7 of the Undertaking).
- AAT must facilitate access by PDI operators to the Automotive Flyover at the Port of Brisbane;
- AAT and MIRRAT must ringfence the confidential information of users of the terminals and Applicants, and AAT, MIRRAT and Qube must maintain controls to ensure that confidential information is not disclosed to unauthorised personnel, which includes Related Bodies Corporate of AAT and MIRRAT except in limited circumstances;
- AAT and MIRRAT must comply with the Price Dispute Resolution Process, which includes the appointment of an ACCC approved Independent Price Expert, and AAT and MIRRAT must comply with the Non-Price Dispute Resolution Process;
- an ACCC Approved Independent Auditor is able to conduct a confidential, ad-hoc investigation into AAT and/or MIRRAT in certain circumstances.

44. The Undertaking also provides for the oversight of the parties' compliance with the Undertaking through regular reporting by an ACCC Independent Auditor.

45. The Undertaking provides for regular reviews to ensure that:
    - the Undertaking continues to achieve its objectives, and its obligations continue to be fit for purpose and achieve an effective, improved non-discriminatory open access framework for the full duration of the Undertaking term; and
    - where new competition concerns arise from the operation of Webb Dock West after the commencement of the Undertaking, these concerns are effectively addressed by the Undertaking.

46. A copy of the Undertaking is available on the ACCC public informal merger reviews register and section 87B undertakings register.

Conclusion

47. Based on the above analysis, the ACCC considered that, in the absence of the Undertaking, the Proposed Acquisition would be likely to have the effect of substantially lessening competition in the supply of automotive stevedoring and/or PDI services at Webb Dock West. In addition, the ACCC was concerned that Qube would have the ability and incentive to foreclose its rivals in downstream markets for the supply of automotive stevedoring and/or PDI services concurrently at multiple east coast ports.

48. However, the ACCC considered that the Undertaking sufficiently addresses these competition concerns, such that, with the Undertaking, the Proposed Acquisition would not have the effect, nor be likely to have the effect, of substantially lessening competition in any market.